

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANWAR DESOUZA,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE NIURCA QUINONES
(SHIELD NO. 3310), POLICE OFFICER JESSICA FUENTES
(SHIELD NO. 17413), POLICE OFFICER JESSICA HERRERA
(SHIELD NO. 14413), Individually and as Employees of
the NEW YORK CITY POLICE DEPARTMENT, "JOHN/JANE
DOE CORRECTION OFFICERS 1-10" (fictitious names,
the true names being unknown at this time),
Individually and as Employees of the NEW YORK CITY
CORRECTION DEPARTMENT and ASSISTANT DISTRICT
ATTORNEY LAUREN F. SILVER, Individually and as an
Employee of the KINGS COUNTY DISTRICT ATTORNEY'S
OFFICE,

Defendants.
-----X

Index No.: _____

Purchased: _____

Plaintiff designates Kings County as
the place of trial.

SUMMONS

Venue based on place of occurrence.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
March 10, 2017

MICHAEL J. AVILES & ASSOCIATES, LLC

By: _____

MICHAEL J. AVILES

Attorneys for Plaintiff

Office & P.O. Address

145 Hudson Street, Suite 5C

New York, New York 10013

Telephone: (212) 307-0023

TO: THE COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building, Room 1225
1 Centre Street
New York, New York 10007

Det. Niurca Quinones (Shield No. 3310)
New York City Police Department – 77th Precinct
127 Utica Avenue
Brooklyn, New York 11213

P.O. Jessica Fuentes (Shield No. 17413)
New York City Police Department – 77th Precinct
127 Utica Avenue
Brooklyn, New York 11213

P.O. Jessica Herrera (Shield No. 14413)
New York City Police Department – 77th Precinct
127 Utica Avenue
Brooklyn, New York 11213

Assistant District Attorney Lauren F. Silver
Brooklyn District Attorney's Office
350 Jay Street
Brooklyn, New York 11201

John/Jane Doe Correction Officers 1-10
75-20 Astoria Boulevard
East Elmhurst, New York 11370

SUPREME STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANWAR DESOUZA,

Plaintiff,

Index No.: _____

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, DETECTIVE NIURCA QUINONES
(SHIELD NO. 3310), POLICE OFFICER JESSICA FUENTES
(SHIELD NO. 17413), POLICE OFFICER JESSICA HERRERA
(SHIELD NO. 14413), Individually and as Employees of
the NEW YORK CITY POLICE DEPARTMENT, "JOHN/JANE
DOE CORRECTION OFFICERS 1-10" (fictitious names,
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Individually and as Employees of the NEW YORK CITY
CORRECTION DEPARTMENT and ASSISTANT DISTRICT
ATTORNEY LAUREN F. SILVER, Individually and as an
Employee of the KINGS COUNTY DISTRICT ATTORNEY'S
OFFICE,

Defendants,
-----X

Plaintiff ANWAR DESOUZA, by his Attorney, MICHAEL J. AVILES & ASSOCIATES, LLC, as
and for a Verified Complaint herein, respectfully sets forth and alleges upon information and
belief as follows:

THE PARTIES

1. At all times hereinafter mentioned, Plaintiff ANWAR DESOUZA
(hereinafter "Plaintiff"), was and is a resident of the County of Kings, City and State of New
York.
2. The causes of action alleged herein arose in the County of Kings, State of
New York.

3. At all times hereinafter mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, the NEW YORK POLICE DEPARTMENT (hereinafter "NYPD") was and is an agency of the CITY OF NEW YORK duly organized and existing by virtue of the laws of the State of New York. Detectives and police officers employed by the NYPD are agents and employees of the City of New York, which is responsible for torts they commit within the scope of their employment and/or under color of law.

5. At all times hereinafter mentioned, the NEW YORK CITY DEPARTMENT OF CORRECTIONS (hereinafter "DOC") was and is an agency of the City of New York duly organized and existing by virtue of the laws of the State of New York. Correction officers employed by the DOC are agents and employees of the City of New York, which is responsible for torts they commit within the scope of their employment and/or under color of law.

6. At all times hereinafter mentioned, the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE (hereinafter "DA's OFFICE") was and is an agency of the CITY OF NEW YORK. Assistant District Attorneys employed by the DA's OFFICE are agents and employees of the CITY OF NEW YORK, which is responsible for torts they commit within the scope of their employment and/or under color of law.

7. At all times hereinafter mentioned, DETECTIVE NIURCA QUINONES (SHIELD NO. 3310) [hereinafter "QUINONES"], was and is a detective/police officer employed by the CITY OF NEW YORK.

8. At all times hereinafter mentioned, QUINONES, acted within the scope of her employment as a detective/police officer, under the direction of the City of New York, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York. She is sued in her individual and her official capacities.

9. At all times hereinafter mentioned, POLICE OFFICER JESSICA FUENTES (SHIELD NO. 17413) [hereinafter FUENTES], was and is a police officer employed by the City of New York.

10. At all times hereinafter mentioned, FUENTES acted within the scope of her employment as a police officer, under the direction of the City of New York, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York. She is sued in her individual and her official capacities.

11. At all times hereinafter mentioned, POLICE OFFICER JESSICA HERERRA (SHIELD NO. 14413) [hereinafter "HERERRA"], was and is a police officer employed by the CITY OF NEW YORK.

12. At all times hereinafter mentioned, HERERRA acted within the scope of her employment as a police officer, under the direction of the CITY OF NEW YORK, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York. She is sued in her individual and her official capacities.

13. At all times hereinafter mentioned, Defendants "JOHN/JANE DOE CORRECTION OFFICERS 1-10" (hereinafter "CORRECTION OFFICERS") were and are correction officers employed by the DOC.

14. At all times hereinafter mentioned, Defendants CORRECTION OFFICERS acted within the scope of their employment as correction officers, under the direction of the City of New York, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York. They are sued in their individual and their official capacities.

15. At all times hereinafter mentioned, Defendants CORRECTION OFFICERS were acting within the scope of their employment as correction officers and under the direction of CITY OF NEW YORK and the DOC as their agents, servants or employees.

16. At all times hereinafter mentioned, ASSISTANT DISTRICT ATTORNEY LAUREN F. SILVER (hereinafter "SILVER"), was and is an Assistant District Attorney in Kings County who was and is employed by the City of New York.

17. At all times hereinafter mentioned, SILVER acted within the scope of her employment as an assistant district attorney, under the direction of the City of New York, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the State of New York and the City of New York. She is sued in her individual and her official capacities.

18. Pursuant to New York General Municipal Law § 50, Plaintiff served a Notice of Claim within 90 days from the date when the cause of action accrued herein.

19. Pursuant to New York General Municipal Law § 50-h, on July 15, 2016, an examination of Plaintiff ANWAR DESOUZA (hereinafter "Plaintiff") was held.

20. Pursuant to New York General Municipal Law § 50-i (b), at least thirty days have elapsed since the Notice of Claim was presented for adjustment or payment thereof, and the CITY OF NEW YORK has failed, neglected or refused to adjust or settle the claim.

21. This action is commenced within one year and ninety days after the cause of action herein accrued, and/or within the time allowed by law.

22. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in the New York Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTUAL ALLEGATIONS

23. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. On July 14, 2013, Plaintiff resided at 725 Miller Avenue, Apt. 3F, Brooklyn, New York.

25. On July 14, 2013, a young woman sustained injuries as a result of being thrown off the roof of 725 Miller Avenue, Apt. 3F, Brooklyn, New York by Antonio Owensford who was then an overnight guest of Plaintiff's.

26. On July 17, 2013, at approximately 6 p.m., while Plaintiff was lawfully in his apartment QUINONES, FUENTES, HERERRA and a SWAT team, without probable cause or reasonable suspicion that Plaintiff was involved in the events of July 14, 2013, went to Plaintiff's home and forced him to open his front door. Immediately upon Plaintiff opening the door, the police grabbed him, threw him on the floor outside of his apartment, and handcuffed him. They then violently searched Plaintiff and his apartment. Plaintiff was never able to return to his apartment.

27. QUINONES, FUENTES and HERERRA arrested and detained Plaintiff without probable cause or reasonable suspicion that Plaintiff was involved in the events of July 14, 2013.

28. QUINONES, FUENTES and HERERRA did not have a warrant for Plaintiff's arrest and never informed him of his Miranda rights before they removed him from his home.

29. Plaintiff was transported from his home to the NYPD Special Victims Unit located at 653 Grand Avenue, Brooklyn, New York 11238, where he was placed in detention and interrogated by QUINONES, FUENTES and HERERRA.

30. For the entire period while he was in the custody of the police, Plaintiff was not allowed to make a phone call and he was denied the counsel of an attorney.

31. At no time during his arrest and detention by the police was Plaintiff read his Miranda rights even though he kept asking for a lawyer.

32. It was not until Plaintiff offered to provide DNA samples that demonstrated his innocence that the aforementioned officers had him sign a Miranda card.

33. Following his arrest on July 17, 2013, Plaintiff was interrogated by QUINONES, FUENTES and HERERRA for three days at the NYPD Special Victims Unit.

34. QUINONES, FUENTES and HERERRA informed Plaintiff that they knew him to be responsible for the events of July 14, 2013.

35. Plaintiff consistently informed the officers that he was innocent.

36. Plaintiff provided and volunteered to provide information, including DNA samples, which confirmed that Plaintiff was innocent.

37. During the course of their detention and interrogation of Plaintiff, QUINONES, FUENTES and HERERRA took a photograph of Plaintiff with a personal cell phone, which they then showed to the victim prior to Plaintiff being picked out of a photo array and a lineup.

38. The victim, upon reviewing the photo array and lineup, identified plaintiff as the perpetrator of the crime against her.

39. Unlike Plaintiff, who is fair-skinned with long hair, the five men in the photo array were dark-skinned with close-cut short hair.

40. After three days of interrogation, Plaintiff was transferred to Brooklyn Central Booking at 120 Schermerhorn Street, Brooklyn, New York 11201, where he was charged with the following crimes: Predatory Sexual Assault, Attempted Murder in the Second Degree, Assault in the First Degree, Rape in the First Degree, Criminal Sexual Act in the First Degree, Assault in the Second Degree, Reckless Endangerment in the First Degree, Sexual Abuse in the First Degree, Rape in the Third Degree, Criminal Sexual Act in the Third Degree, Assault in the Third Degree, Reckless Endangerment in the Second Degree, Sexual Misconduct, Endangering the Welfare of a Child and Sexual Abuse in the Third Degree.

41. At his bail hearing, Plaintiff was remanded to Rikers Island because he was unable to make bail set at \$250,000.00.

42. Plaintiff was detained at Rikers Island for nine days from July 19, 2013 until he was released on his own recognizance on July 26, 2013. Subsequently, Plaintiff was reincarcerated at Rikers Island from November 18, 2015 to December 31, 2015.

43. At Rikers Island, Plaintiff, who is Muslim, was continuously denied Islamic services and halaal meals; the DOC failed to place Plaintiff in protective custody given the nature of the charges against Plaintiff until July 23, 2013; and the DOC permitted other inmates at Rikers Island to attack Plaintiff on multiple occasions.

44. At Rikers Island, another inmate attempted to stab Plaintiff; and Plaintiff was pepper-sprayed by Rikers Island guards as he attempted to protect himself from another inmate's attack of another inmate.

45. As a result of being subjected to repeated and unprovoked attacks at Riker's Island, Plaintiff sustained injury to his left shoulder and left knee.

46. Plaintiff was also denied access to proper medical treatment for the injuries he sustained during the attacks on his person at Riker's Island, and was denied dental treatment.

47. Plaintiff testified before a Grand Jury on July 23, 2013, which is more than 6 days (or 144 hours) after Plaintiff was arrested.

48. Based on information provided by defendants, the Grand Jury returned a True Bill and Plaintiff was indicted. SILVER failed to proceed with the criminal prosecution against Plaintiff until approximately two years later.

49. The DA's OFFICE made no attempt to prosecute Plaintiff until the actual perpetrator of the crime, Owensford, entered into an agreement with the DA's OFFICE on July 16, 2015. Owensford failed to offer any trial testimony that he had any accomplices in the events of July 14, 2013.

50. Despite Plaintiff's innocence, the Defendants persisted in their malicious criminal prosecution of Plaintiff.

51. Defendants' criminal prosecution persisted even though Defendants had full knowledge of the identity of the actual perpetrator of the crime who was in Defendants' custody, and with DNA evidence showing Owensford's involvement and establishing that Plaintiff had no contact with the victim.

52. It was not until during the trial in January 2016 that the DA's OFFICE acknowledged and admitted that the criminal charges against Plaintiff must be dismissed.

53. On January 13, 2016, the DA's OFFICE declined to continue their prosecution of Plaintiff and the Hon. Vincent Del Giudice dismissed the criminal charges against Plaintiff.

54. On or about February 16, 2016, claimant obtained a Certificate of Disposition confirming that all criminal charges related to the action were dismissed, and that Plaintiff was discharged from the court's jurisdiction.

55. As a result of his arrest, detention and malicious prosecution of Plaintiff by Defendants, Plaintiff and his wife and two young children sustained devastating losses.

56. When the defendants' detained Plaintiff on July 17, 2013 Plaintiff was at home alone.

57. The police failed to secure the front door of Plaintiff's home before they took him away.

58. Unknown entities entered Plaintiff's home and steal his belongings before his wife and two children returned home.

59. As a result of the Defendants' actions, as well as the nature of the charges initiated against him, Plaintiff and his family were never permitted to return to their home.

60. Plaintiff and his family were unable to find a new home and were forced to reside in homeless shelters and on the couches of family and friends.

61. At the time of his arrest, detention and malicious prosecution, Plaintiff had no criminal record and was the sole breadwinner for his family. He had been employed for six years at Whole Foods in Union Square. In July 2013, he was the Night Receiving Supervisor and eligible for a promotion to Assistant Team Leader.

62. During his detention, Plaintiff was prevented from informing his employer that he was being held. As such, he was fired from Whole Foods for job abandonment.

63. Although he was rehired after approximately 2 months, Plaintiff was placed on probation, which meant that he could be fired for any infraction.

64. Plaintiff was permanently fired by Whole Foods when he repeatedly missed work and/or presented late for work because of mandatory court appearances and the need to relocate his family into yet another homeless shelter as a result of the loss of his apartment.

65. Plaintiff has since been unable to find steady, gainful and comparable employment.

66. The loss of his permanent and consistent source of income and his unpredictable legal status placed a strain on Plaintiff's marriage. Plaintiff and his wife are separated.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment under State Law

67. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "66" with full force and effect as though set forth at length herein.

68. On July 17, 2013, the Defendants, their agents, servants and employees, wrongfully and falsely arrested, detained and imprisoned Plaintiff without any right or justifiable grounds therefor.

69. On July 17, 2013, QUINONES, FUENTES and HERERRA, jointly and severally, in their capacity as detectives and/or police officers, wrongfully entered Plaintiff's apartment and handcuffed and seized Plaintiff causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter Plaintiff's apartment and handcuff and seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching, nor was this illegal touching privileged by law.

70. On July 17, 2013, QUINONES, FUENTES and HERERRA, jointly and severally, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and took him into custody.

71. The aforesaid arrest, detention and imprisonment continued in Brooklyn, New York and elsewhere at various locations.

72. Said arrest, detention and imprisonment were caused by the Defendants, their agents, servants and employees, including, but not limited to the Defendant police officers, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

73. Defendants, their agents, servants and employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

74. As a result of the false arrest, imprisonment and detention of Plaintiff, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitutions and Laws of the United States of America and the State of New York.

75. As a result of the false arrest, imprisonment and detention of Plaintiff, Defendants deprived Plaintiff of the right to be free from unreasonable searches and seizures secured by the Constitutions and Laws of the United States of America and the State of New York.

76. As a result of the false arrest, imprisonment and detention of Plaintiff, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitutions and Laws of the United States of America and the State of New York.

77. The aforementioned actions of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

78. By reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and

was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

79. The Defendant the CITY OF NEW YORK is liable under the principle of *respondeat superior*.

80. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

Malicious Prosecution under State Law

81. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "80" with full force and effect as though set forth at length herein.

82. From July 17, 2013 until the voluntary dismissal of the charges against Plaintiff on January 13, 2016, the Individual Defendants acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of criminal proceedings against Plaintiff.

83. The commencement and continuation of these criminal proceedings was malicious, and was initiated with actual malice, and without probable cause, with the intention for the Defendants to succeed.

84. The criminal proceedings resulted in an indictment against Plaintiff, which was terminated in Plaintiff's favor.

85. As a result thereof, Plaintiff was required to appear in court to defend against these wrongful charges.

86. The Defendant the CITY OF NEW YORK is liable under the principle of *respondeat superior*.

87. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Intentional Infliction of Emotional Distress under State Law

88. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "87" with full force and effect as though set forth at length herein.

89. From July 17, 2013 until the voluntary dismissal of the charges against Plaintiff on January 13, 2016, the Individual Defendants engaged in a continuous pattern of extreme and outrageous conduct directed at Plaintiff at least until the dismissal of all criminal charges against Plaintiff.

90. Defendants engaged in that pattern of conduct with an intention to, or in reckless disregard of the substantial probability that it would, cause Plaintiff severe emotional distress.

91. Specifically, Defendants, individually, in concert with, conspiring with, and/or aiding and abetting one another and other persons for whose acts they are liable, while acting in an investigative or administrative capacity, coerced witnesses into making false statements to be used against Plaintiff, created false official records to be used against Plaintiff, initiated or caused the initiation and continuation of false and unfounded criminal charges against Plaintiff while lacking probable cause to do so, and abused judicial process in order to coerce witnesses to make false statements against Plaintiff.

92. Plaintiff suffered severe emotional distress as a result of, and that was proximately caused by, the Defendants' aforementioned actions.

93. The Defendant CITY OF NEW YORK is liable under the principle of *respondeat superior*.

94. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Negligence under State Law

95. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "94" with full force and effect as though set forth at length herein.

96. The Defendants' conduct and the resulting injuries to Plaintiff's mind and body were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants and/or employees, including defendants QUINONES, FUENTES, HERRERA, JOHN/JANE DOE CORRECTION OFFICERS 1-10 and the Kings County District Attorney's Office, including ASSISTANT DISTRICT ATTORNEY LAUREN F. SILVER, without any negligence on the part of the Plaintiff contributing thereto.

97. The Defendant CITY OF NEW YORK is liable under the principle of *respondeat superior*.

98. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

42 U.S.C. § 1983; Denial of Due Process under the Fifth, Sixth and Fourteenth Amendments; Malicious Prosecution and Deprivation

of Liberty under the Fourth and Fourteenth Amendments

99. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "98" with full force and effect as though set forth at length herein.

100. Defendants knowingly and willfully manufactured, or caused the manufacturing of, a false written statement, which they prepared and improperly compelled or induced the young woman involved in the July 14, 2013 incident to accuse Plaintiff of participation in the crimes committed against her on July 14, 2013.

101. Defendants knew that the statements would, and caused the statements to, be relied upon by the DA's OFFICE and the court as a basis to arrest Plaintiff, to formally initiate Plaintiff's prosecution and to hold Plaintiff at Rikers Island until his bail was paid.

102. Defendants thereafter knowingly swore to a false Criminal Court complaint initiating the criminal prosecution of Plaintiff, and causing Plaintiff to be held at Rikers Island pending the payment of bail.

103. The aforesaid conduct, which Defendants committed in concert with and in aid of each other, and/or in concert or conspiracy with other named and unnamed, operated to deprive Plaintiff of his rights under the Constitution and the Laws of the United States:

- (a) Not to be arrested, indicted, prosecuted, detained, convicted, or imprisoned based upon false, fabricated, manufactured, misleading, or inherently unreliable evidence, including the statements and testimony of witnesses who have been improperly influenced, coerced, or manipulated to provide such statements and testimony, in violation of the Due Process and Fair Trial Clauses of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.
- (b) Not to be deprived of his liberty absent probable cause to believe he has committed a crime, in violation of his rights under the Fourth and Fourteenth Amendments of the United States Constitution; and

- (c) To timely disclose all material evidence favorable to the defense pursuant to *Brady v. Maryland*, 373 U.S. 83 (1963), *Giglio v. United States*, 405 U.S. 150 (1972), and their progeny, and the Due Process and Fair Trial Clauses of the Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

104. The violations of Plaintiff's Federal Constitutional rights by the Defendants and their co-conspirators and accomplices, known and unknown, directly, substantially, proximately and foreseeably caused the initiation and continuation of Plaintiff's criminal prosecution, his loss of liberty and detention without bail, his wrongful conviction, his subsequent imprisonment, and his other injuries and damages.

105. The foregoing violations of Plaintiff's rights amounted to Constitutional torts and were effected by actions taken under color of State law, and within the scope of the Defendants' employment and authority.

106. Defendants committed the foregoing violations of Plaintiff's rights knowingly, intentionally, willfully recklessly, and/or with deliberate indifference to Plaintiff's constitutional rights or to the effect of such misconduct upon Plaintiff's constitutional rights.

107. By reason of the foregoing, the Defendants are liable to Plaintiff, pursuant to 42 U.S.C. § 1983, for compensatory and punitive damages, and attorneys' fees.

SIXTH CAUSE OF ACTION

Constitutional Violations against Individual Police Officers and Correction Officers

108. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "107" with full force and effect as though set forth at length herein.

109. Defendants, QUINONES, FUENTES and HERERRA, while effectuating the seizure of the Plaintiff did search, seize, assault and commit a battery and grab the person of

Plaintiff without a court-authorized arrest or search warrant. They did physically seize the person of Plaintiff during the arrest in an unlawful and excessive manner. Plaintiff was falsely arrested, unlawfully imprisoned, subjected to a coercive and unduly suggestive identification process, including, but not limited to photo array and line-up, and maliciously prosecuted without the Defendants possessing probable cause to do so.

110. Defendants, JOHN/JANE DOE CORRECTION OFFICERS 1-10, while effectuating the seizure of Plaintiff did deny Plaintiff access to sick call, halaal meals and medical and dental care and treatment, and allowed and/or ignored the repeated attacks on Plaintiff's person by other inmates at Rikers Island, in deliberate indifference to Plaintiff's serious needs.

111. As a result of the actions of these Defendants, Plaintiff was deprived of the following rights under the Constitutions of the United States and the State of New York: (a) freedom from assault to his person; (b) freedom from battery to his person; (c) freedom from illegal search and seizure; (d) freedom from false arrest; (e) freedom from malicious prosecution; (f) freedom from the use of excessive force during the arrest process; (g) freedom from unlawful imprisonment; and (h) freedom from cruel and unusual punishment.

112. Defendants subjected Plaintiff to such deprivations, in malicious and reckless disregard of the Plaintiff's rights and with deliberate indifference to his rights under the Fourth, Eighth, and Fourteenth Amendments of the United States Constitution and of the Constitution of the State of New York.

113. As a direct and proximate result of the Defendants' actions, Plaintiff suffered severe and permanent physical and psychological injuries, and was forced to endure pain and suffering.

114. Defendant the CITY OF NEW YORK is liable under the principle of *respondeat superior*.

115. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Monell/42 U.S.C. § 1983: Claim against Defendant City of New York for the Actions of the NYPD

116. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "115" with full force and effect as though set forth at length herein.

117. The within violations of Plaintiff's federal constitutional rights and injuries were directly, foreseeably, proximately, and substantially caused by conduct chargeable to Defendant CITY OF NEW YORK, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

118. All of the acts and omissions by the Defendants QUINONES, FUENTES, HERERRA described above were carried out pursuant to overlapping policies and practices of the NYC, which were in existence at the time of the conduct alleged herein, and were engaged in with the full knowledge, consent and cooperation, and under the supervision of the NYPD.

119. Prior to Plaintiff's arrest, policymaking officials of the NYPD, were deliberately indifferent to the constitutional rights of individuals suspected or accused of

criminal activity, to the risk of arresting, prosecuting and convicting innocent people, and to the right of all criminal suspects and defendants to due process and a fair trial, implemented plainly inadequate policies, procedures, regulations, practices , customs, training, supervision, and discipline concerning:

- (a) The use of unduly coercive identification and interrogation techniques;
- (b) The determination of probable cause to make an arrest; and
- (c) The continuing duty of police investigators to reserve and to make timely disclosure to the District Attorney, during criminal investigations and prosecutions, of all material evidence or information favorable to a person suspected, accused or convicted of criminal conduct, including, but not limited to, evidence of innocence, evidence of innocence, evidence that an identifying or prosecution witness is unreliable or lacks general credibility, evidence that a prosecution witness has made inconsistent statements about material facts, and evidence that a prosecution witness has a motive, bias or interest affecting his credibility or has been pressured or coerced, so that the District Attorney could comply with his constitutional obligation to disclose such information to the defense under *Brady*.

120. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs were implemented or tolerated by policymaking officials for the Defendant CITY OF NEW YORK, including, but not limited to, the New York City Police Commissioner, who knew or should have known:

- (a) To a moral certainty that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases; and
- (b) The wrong choice by police employees concerning such issues will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

121. The aforementioned policymaking officials had knowledge based upon, among other circumstances:

- (a) Credible allegations, including those substantiated by judicial decisions, that NYPD officers wrongfully withheld material evidence or knowingly gave false or misleading testimony;
- (b) Civil lawsuits, some of which resulted in substantial civil settlements, credibly alleging that police falsified, exaggerated, or withheld material evidence, or conducted searches or arrests without probable cause and/or with the use of unduly coercive and suggestive identification procedures;
- (c) Decisions of the federal and state courts discussing the difficult issues that regularly arise under *Brady*, as well as the probable cause requirements of the Fourth Amendment; and
- (d) The inherent obviousness of the need to train, supervise and discipline police officers in such obligations to counteract the pressure of officers and the powerful incentives they have to close cases and to obtain arrests and convictions.

122. Under the principles of municipal liability for federal civil rights violations, the City's Police Commissioner (or his authorized delegates), had final responsibility for training, instructing, supervising, and disciplining police personnel with respect to the investigation and prosecution of criminal matters, including constitutional requirements governing the interrogation of witnesses, the identification of defendants, the initiation of criminal prosecutions, and the disclosure of *Brady* material.

123. The Police Commissioner, personally and/or through his authorized delegates, at all relevant times had final authority, and constitutes a City of New York policy maker for whom the CITY OF NEW YORK is liable, with respect to compliance by NYPD employees with the above-mentioned constitutional requirements.

124. During all times material to this Complaint, the CITY OF NEW YORK, through its policymakers, owed a duty to the public at large and to Plaintiff, which was knowingly and intentionally breached, or to which it was deliberately indifferent, to implement

policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects or defendants and of other members of the public.

125. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant CITY OF NEW YORK and the NYPD were collectively and individually a substantial factor in bringing about the aforesaid violations by QUINONES, FUENTES and HERERRA of Plaintiff's rights under the Constitution and laws of the United States.

126. By virtue of the foregoing, Defendant, CITY OF NEW YORK is liable for having substantially caused the foregoing violations of Plaintiff's constitutional rights and his constitutional injuries.

EIGHTH CAUSE OF ACTION

Monell/42 U.S.C. § 1983: Claim against Defendant City of New York for the Actions of the DOC

127. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "126" with full force and effect as though set forth at length herein.

128. The within violations of Plaintiff's federal constitutional rights and injuries were directly, foreseeably, proximately, and substantially caused by conduct chargeable to Defendant CITY OF NEW YORK, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are incarcerated at Rikers Island.

129. All of the acts and omissions by the Defendants JOHN/JANE DOE CORRECTION OFFICERS 1-10 described above were carried out pursuant to overlapping policies and practices of the NYC, which were in existence at the time of the conduct alleged herein,

and were engaged in with the full knowledge, consent and cooperation, and under the supervision of the DOC.

130. At the time of Plaintiff's prosecution, the New York City Commissioner of Corrections, maintained a policy, custom and/or practice of deliberate indifference to violations by his employees of the constitutional rights of individuals who were incarcerated at Rikers Island, including denying Plaintiff access to Islamic services, halaal meals, sick call, and medical and dental care and treatment; failing to place Plaintiff in protective custody until July 23, 2013; and allowing and/or ignoring the repeated attacks on Plaintiff by other persons incarcerated at Rikers Island.

131. The policy, custom and/or practice permits, encourages, or acquiesces in the commission of constitutional violations of the rights of suspects and defendants by correction officers, particularly in high profile or serious cases such as cases involving sexual assault. The policy, custom and/or practice led directly to the violations of Plaintiff's constitutional rights while he was incarcerated at Rikers Island.

132. The Commissioner of Corrections, personally and/or through his authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision and discipline, with respect to the DOC's performance of its duties, and constitutes a City of New York policymaker for whom the City of New York is liable, with respect to compliance by DOC employees with the above-mentioned constitutional requirements.

133. During all times material to this Complaint, the CITY OF NEW YORK, through its policymakers, owed a duty to the public at large and to Plaintiff, which he knowingly and intentionally breached, or to which he was deliberately indifferent, to implement policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects or defendants and of other members of the public.

134. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant CITY OF NEW YORK and the NYPD were collectively and individually a substantial factor in bringing about the aforesaid violations by JOHN/JANE DOE CORRECTION OFFICERS 1-10 of Plaintiff's rights under the Constitution and laws of the United States.

135. By virtue of the foregoing, the CITY OF NEW YORK is liable for having substantially caused the foregoing violations of Plaintiff's constitutional rights and his resultant injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Supervision and Training Under State Law as to CITY OF NEW YORK

136. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "135" with full force and effect as though set forth at length herein.

137. The Defendant the CITY OF NEW YORK was deliberately indifferent, negligent, careless and/or reckless in failing to adequately hire, retain, train, supervise and discipline its agents, servants and/or employees employed by the DA's OFFICE, the NYPD, and the DOC, with regard to their aforementioned duties.

138. By reason of the foregoing, Plaintiff was damaged in a sum, which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Vicarious Liability of the City of New York
For State Law Violations

139. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "138" with full force and effect as though set forth at length herein.

140. The conduct of defendants QUINONES, FUENTES, HERRERA, JOHN/JANE DOE CORRECTION OFFICERS 1-10 and the Kings County District Attorney's Office, including ASSISTANT DISTRICT ATTORNEY LAUREN F. SILVER alleged herein, occurred while they were on duty and/or in uniform in and during the course and scope of their duties and functions police officers, assistant district attorneys and correction officers of the CITY OF NEW YORK, and while they were acting as agents, officers, servants and employees of the CITY OF NEW YORK. As a result, the CITY OF NEW YORK is liable to the Plaintiff pursuant to the New York State common law doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands judgment on all causes of action against the Defendants as follows:

- a. For compensatory damages of not less than \$10 million;
- b. For punitive damages of not less than \$50 million;
- c. For reasonable attorneys' fees, together with costs and disbursements, pursuant to 42 U.S.C. § 1099, and to the inherent powers of this Court;
- d. Together with such other and further relief as this Court may deem just and proper.

Dated: New York, New York
March 10, 2017

Yours, etc.,

MICHAEL J. AVILES & ASSOCIATES, LLC

By: _____

MICHAEL J. AVILES

Attorney for Plaintiff

145 Hudson Street, Suite 5C

New York, New York 10013

(212) 307-0023

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

MICHAEL J. AVILES, ESQ., an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

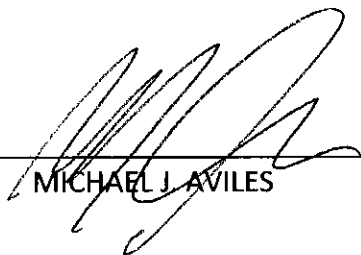
I am a member of the firm MICHAEL J. AVILES & ASSOCIATES, LLC, the attorneys for the plaintiff in this action; I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: correspondence and conversations with my client and a review of the file maintained by my office in this matter.

The reason this Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the county in which Plaintiff's counsel's office is located.

I affirm the foregoing statements are true under penalties of perjury.

Dated: New York, New York
March 10, 2017


MICHAEL J. AVILES